



CHAPTER xxiv.

An Act to empower the Commissioners of the Streatley and Goring Bridge and approaches to construct a new bridge and approaches across the Thames between Streatley and Goring and for other purposes.

A.D. 1915.

[24th June 1915.]

WHEREAS the Commissioners for carrying into execution the Act 7 William IV. & 1 Victoria cap. XXXI. (in this Act called "the Commissioners") in pursuance of that Act constructed a bridge across the Thames between Streatley and Goring in the counties of Berks and Oxford:

And whereas the said bridge has become decayed and inadequate to meet the requirements of the traffic using the same and it is expedient that the existing bridge should be removed and a new stronger and wider bridge constructed in place thereof as by this Act provided:

And whereas it is expedient that powers for borrowing further moneys should be conferred upon the Commissioners for the purposes of this Act and for the general purposes of their undertaking:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerks of the peace

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Act, 1915.

A.D. 1915. for the counties of Berks and Oxford and are in this Act
— respectively referred to as the deposited plans sections and
book of reference :

May it therefore please Your Majesty that it may be enacted
and be it enacted by the King's most Excellent Majesty by
and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows (that is to say) :—

Short title. 1. This Act may be cited as the Streatley and Goring
Bridge Act 1915.

Incorporation of Acts. 2. The following enactments so far as the same are appli-
cable for the purposes and are not varied by or inconsistent
with the provisions of this Act are hereby incorporated with
this Act (that is to say) :—

(1) The provisions of the Railways Clauses Consolidation
Act 1845 with respect to the temporary occupation
of lands near the railway during the construction
thereof and with respect to the recovery of damages
not specially provided for and of penalties and to
the determination of any other matter referred to
justices the sections of that Act being construed as
if the expression “the Commissioners” had been
inserted therein instead of the expression “the com-
pany” and as if a reference to the works authorised
by this Act had been inserted therein instead of the
expression “the railway” and as if the expression
“centre of the railway” meant the limits of the
works authorised by this Act :

(2) The Lands Clauses Acts (except sections 16 17 and 127
of the Lands Clauses Consolidation Act 1845) and in
construing those Acts the Commissioners shall be the
promoters of the undertaking.

Interpreta- 3. In this Act unless there is something in the subject or
tion. the context repugnant to such construction the several words
and expressions to which meanings are assigned by the Acts
wholly or partially incorporated herewith have the same
respective meanings And—

The expression “the Commissioners” means the Commis-
sioners for carrying into execution the Act 7 William
IV. & 1 Victoria cap. XXXI.;

“The tribunal” means the jury arbitrators umpire or other authority to whom any question of disputed purchase money or compensation under this Act is referred; A.D. 1915.

“Statutory securities” means any securities in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgages bonds debentures debenture stock stock or other securities authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery;

“The Act of 1837” means the Act 7 William IV. & 1 Victoria cap. XXXI.

4. Subject to the provisions and for the purposes of this Act the Commissioners may enter on take and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference. Power to acquire lands.

5. The powers of the Commissioners for the compulsory purchase of lands under this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

6. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Commissioners after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Berks or Oxford as the case may be for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Berks or Oxford as the case may be and such certificate shall be kept by such clerk of the peace with the other documents to which the same relates and thereupon the deposited plans or book of reference shall be deemed to be corrected according to such

Correction of errors in plans and book of reference.

A.D. 1915. certificate and it shall be lawful for the Commissioners to take the lands and execute the works in accordance with such certificate.

Owners may be required to sell parts only of certain lands and buildings.

7.—(1) Whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Commissioners of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Commissioners and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

(a) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the Commissioners or each or any of them are hereinafter in this section included in the term “the owner” and the said properties are hereinafter referred to as “the scheduled properties”:

(b) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Commissioners that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Commissioners such portion only without the Commissioners being obliged or compellable to purchase the whole the Commissioners paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:

(c) If within such twenty-one days the owner shall by notice in writing to the Commissioners allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled properties specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what

other portion less than the whole (but not exceeding the portion over which the Commissioners have compulsory powers of purchase) can be so severed: A.D. 1915.

- (d) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Commissioners the portion which the tribunal shall have determined to be so severable without the Commissioners being obliged or compellable to purchase the whole the Commissioners paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (e) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:
- (f) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Commissioners may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (g) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Commissioners in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and

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expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

(2) The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 (No party to be required to sell part of a house) of the Lands Clauses Consolidation Act 1845.

(3) The provisions of this section shall be stated in or endorsed upon every notice given thereunder to sell and convey any premises.

Costs of
arbitration
&c. in cer-
tain cases.

8.—(1) The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Commissioners award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Commissioners by the claimant giving sufficient particulars and in sufficient time to enable the Commissioners to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Commissioners had been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant.

(2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Commissioners to amend the statement in writing of the claim delivered by him to the Commissioners in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Commissioners if they object to the amendment and such amendment shall be subject to such terms enabling the Commissioners to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case.

(3) Provided also that this section shall be applicable only A.D. 1915.
in cases where the notice to treat under the Lands Clauses
Consolidation Act 1845 either contained or was endorsed with a
notice to the effect of this section.

9. The Commissioners in addition to any other lands Power to
acquired by them in pursuance of this Act may by agreement purchase
purchase take on lease acquire and hold further lands for the additional
purposes of this Act but the quantity of lands held by the lands by
Commissioners in pursuance of this section shall not at any agreement.
time exceed five acres Provided that the Commissioners shall
not create or permit the creation or continuance of any nuisance
on any such lands.

10. Persons empowered by the Lands Clauses Acts to sell Persons
and convey or release lands may if they think fit subject to under dis-
the provisions of those Acts and of this Act grant to the ability may
Commissioners any easement right or privilege (not being an grant ease-
easement right or privilege of water in which persons other ments &c.
than the grantors have an interest) required for the purposes of
this Act in over or affecting any such lands and the provisions
of the said Acts with respect to lands and rentcharges so far as
the same are applicable in this behalf shall extend and apply
to such grants and to such easements rights and privileges as
aforesaid respectively.

11. Notwithstanding anything in the Lands Clauses Acts Power to
or in any other Act or Acts to the contrary the Commissioners retain sell
may retain hold and use for such time as they may think fit or &c. lands.
may sell lease exchange or otherwise dispose of in such manner
and for such consideration and purpose and on such terms and
conditions as they may think fit and either in consideration of
the execution of works or of the payment of a gross sum or of
an annual rent or of any payment in any other form any lands
within six feet of the lines on the deposited plans respectively
indicating the sides of the bridges and approaches (Works
Nos. 1 and 3) and the foot of the embankment on both sides
of the public carriage road (Work No. 2) authorised by this
Act or any interest therein acquired by them under this Act
or the Act of 1837 and the Commissioners may sell exchange
or dispose of any rents reserved on the sale lease exchange or
disposition of such lands or interests therein and may make do
and execute any deed act or thing proper for effectuating any

A.D. 1915. such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Power to
construct
works.

12. Subject to the provisions of this Act the Commissioners may make and maintain in the lines and according to the levels shown on the deposited plans and sections and within the limits shown on the deposited plans from time to time may alter or rebuild the works hereinafter described together with all necessary or proper works and conveniences connected therewith or incident thereto.

The works hereinbefore referred to and authorised by this Act are—

Work No. 1 A bridge and approaches commencing in the parish of Streatley in the county of Berks at a point 26 feet or thereabouts measured in a south-easterly direction from the south-easterly corner of the stable of the Swan Hotel and terminating in the parish of Goring in the county of Oxford at a point 16 feet measured in a south-westerly direction from the south-westerly corner of the toll-house on the existing Streatley and Goring Bridge:

Work No. 2 An embankment and public carriage road entirely situate in the parish of Goring in the county of Oxford commencing at the termination of Work No. 1 and terminating at a point 144 feet measured in a south-easterly direction from the south-easterly corner of the said toll-house:

Work No. 3 A bridge and approaches entirely situate in the said parish of Goring and county of Oxford commencing at the termination of Work No. 2 and terminating at a point 225 feet measured in a south-easterly direction from the south-easterly corner of the shop belonging to Messrs. Hobbs & Sons Ltd.

Limits of de-
viation.

13. In the construction of the works authorised by this Act the Commissioners may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of lateral deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding two feet either upwards or downwards Provided that in the construction of so much of the bridges as will be over the River Thames the Commissioners shall not deviate from the levels thereof shown on the deposited sections downwards except with the consent of the Conservators of the River Thames.

14. Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Commissioners may in connection with the works authorised by this Act and for the purposes thereof make junctions and communications with any existing streets roads or footways which may be intersected or interfered with by or be contiguous to such works and may make diversions widenings or alterations of the lines or levels of any existing streets for the purpose of connecting the same with such works or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer channel or gas water or electricity main or pipe wire or apparatus within the said limits the Commissioners providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section.

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 Subsidiary
 works.

15. Within the limits of deviation shown on the deposited plans the Commissioners may raise sink or otherwise alter the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and also the drains and the pipes or wires which for the purpose of conveying water electricity or gas to any house or other place shall be laid and may remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the Commissioners shall pay compensation to all persons for any damage sustained by them by the exercise of the powers of this section the amount of compensation to be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

Power to
 alter steps
 areas pipes
 &c.

16. For the protection of the South Oxfordshire Water and Gas Company (in this section called "the company") the following provisions shall unless otherwise agreed apply and have effect (that is to say):—

For protec-
 tion of South
 Oxfordshire
 Water and
 Gas Com-
 pany.

- (1) Before commencing any works authorised by this Act which will in any way affect the mains pipes or other works (hereinafter called "apparatus") of the company the Commissioners shall deliver to the company plans and sections and a description of the

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works so proposed to be executed describing the proposed manner of executing the same so far as they will affect such apparatus and a notice stating the date when it is proposed to commence such works and such plans sections description and notice shall be delivered to the company at least twenty-eight days before the commencement of any such works :

- (2) If it should appear to the company that such works will interfere with or endanger any of their apparatus or impede the supply of water or gas the company may give notice to the Commissioners to lower or otherwise alter the position of or support such apparatus or to substitute temporarily or permanently other apparatus in such manner as may be reasonably necessary and any difference as to the reasonable necessity of such lowering alteration support or substitution shall be settled as hereinafter provided and all such works shall be done and executed by and at the expense of the Commissioners but to the reasonable satisfaction and under the superintendence of the engineer of the company Provided that if the company by notice in writing to the Commissioners within seven days after the receipt by them of notice of the intended commencement by the Commissioners of any such works so require the company may by their own engineer or workmen do and execute any such lowering alteration support or substitution of the apparatus of the company to the reasonable satisfaction and under the superintendence of the engineer of the Commissioners and the Commissioners shall on completion thereof pay to the company the reasonable expenses incurred by them in the execution thereof :
- (3) In the event of such plans sections and description so delivered to the company as aforesaid not being objected to within fourteen days the company shall be deemed to have approved thereof and the said works shall be executed in strict accordance therewith :
- (4) If the Commissioners for any of the purposes of this Act take or render useless any apparatus belonging

to the company they shall pay to the company the value of such apparatus and the same shall thereupon become the property of the Commissioners and the Commissioners shall also pay to the company their reasonable charges of removing or altering any of their apparatus in immediate communication therewith which the works of the Commissioners shall render useless or which shall be required to be altered in consequence of the works by this Act authorised:

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- (5) If any interruption in the supply of water or gas by the company shall be in any way occasioned or if any substantial loss of water or gas shall be sustained by the company by reason of any act or omission of the Commissioners or of any of their contractors agents workmen or servants the Commissioners shall compensate the company for and indemnify them against all damages losses claims or expenses incurred by or caused to them by or by reason or in consequence of such interruption or loss the amount of such compensation failing agreement to be settled by arbitration as hereinafter provided:
- (6) The expense of all repairs or renewals of any apparatus of the company or any works in connection therewith which may be rendered necessary by the acts or defaults of the Commissioners their contractors agents workmen or servants at any time or by reason of any subsidence resulting from the works of the Commissioners whether during the construction of the said works or at any time within one year thereafter shall be borne and paid by the Commissioners:
- (7) Any difference which may arise between the Commissioners and the company under this section shall be referred to and settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

17. For the protection of the Conservators of the River Thames (in this section referred to as "the conservators") the following provisions shall notwithstanding anything contained in this Act or the Acts incorporated therewith or in any other

For protec-
tion of Con-
servators of
River
Thames.

A.D. 1915. Act have effect unless otherwise agreed in writing between the conservators and the Commissioners (that is to say):—

- (1) In this section unless there be something in the subject or context repugnant to such construction the expression “the river” means the River Thames and the bed banks and shores thereof and the towpath adjacent thereto:
- (2) Works Nos. 1 and 3 by this Act authorised shall be executed and maintained according to the plans elevations and sections signed by John Frederick Hawkins on behalf of the Commissioners and Griffith John Griffiths on behalf of the conservators:
- (3) All temporary works and the repair or reconstruction of the said Works Nos. 1 and 3 affecting the river shall be executed under the superintendence and to the reasonable satisfaction of the engineer of the conservators and the navigation of the river shall not be interfered with more than is absolutely necessary in the execution and maintenance of the works:
- (4)—(a) Throughout the period of construction of the temporary and permanent works there shall be an opening in the temporary works having a clear width of twenty-five feet measured in a westerly direction from the edge of the towpath bank and having a clear headway of not less than fifteen feet above water level which level shall for that purpose be deemed to be 131·12 feet above Ordnance datum:
(b) After the completion of the works by this Act authorised there shall be an opening under Work No. 3 having a clear waterway of not less than forty-three feet six inches in width measured in a westerly direction from the edge of the said towpath bank with a towing path contained in the same span of at least ten feet clear width and a headway above water level as hereinbefore described of not less than seventeen feet:
(c) No pile driver barge or other craft shall at any time except with the consent of the conservators be allowed to lie in or obstruct any part of the openings referred to in paragraphs (a) and (b) of this subsection Provided that the owners and masters of vessels

shall not be liable to make good any damage which may be caused to the temporary works except such as may arise from the wilful act neglect or default of such owners or masters or their servants or agents : A.D. 1915.

(5) The works when commenced shall be proceeded with and completed as early as practicable and the Commissioners shall upon completion of the permanent works upon reasonable notice from the conservators so to do remove the whole and every part of any temporary works and materials for temporary works which may have been placed in the river by the Commissioners and on their failing so to do the conservators may remove the same charging the Commissioners with the expense of so doing and the Commissioners shall forthwith repay to the conservators all expenses so incurred :

(6) The Commissioners shall during the construction and after the completion of Works Nos. 1 and 3 (hereinafter in this section collectively referred to as "the bridges") hang out and exhibit at or near to the bridges every night from sunset to sunrise lights to be kept burning by and at the expense of the Commissioners and proper and sufficient for the navigation and the safe guidance of vessels and the Commissioners shall also in like manner and at the like expense hang out and exhibit at or near the bridges every day from sunrise to sunset such signals as may be reasonably proper and sufficient for the navigation and safe guidance of vessels and such lights and signals or any of them as the case may be shall from time to time be altered by the Commissioners in such manner and be of such kind and number and be so placed and used as the conservators by writing under the hand of their secretary or other authorised officer shall approve or direct and in case the Commissioners fail so to keep burning and exhibit the lights and signals they shall for every such offence forfeit to the conservators a sum not exceeding ten pounds which may be recovered by the conservators in a summary manner in any court of summary jurisdiction :

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- (7) The Commissioners shall not without the previous consent of the conservators under the hand of their secretary exercise any of the powers of section 19 (Power to take lands &c.) of the Act of 1837 : .
- (8) The foundations of the bridges shall be constructed and maintained at and the piles of the bridges shall be driven to such a level as to allow the bed of the river around and near to the said foundations and piles to be dredged to a level of 123·12 feet above Ordnance datum without endangering the safety of the bridges :
- (9) The Commissioners shall pay to the conservators such sum as may be reasonably expended by them in providing superintendence during the construction or repair of the works by this Act authorised :
- (10) Notwithstanding anything in section 88 of the Thames Conservancy Act 1894 it shall not be obligatory upon the conservators to give to the Commissioners notice before commencing to dredge cleanse scour or deepen any part of the river under Work No. 3 to the said depth of 123·12 feet above Ordnance datum :
- (11) The Commissioners shall on or before the completion of the bridges construct and complete at their own expense and to the reasonable satisfaction of the conservators under the supervision of their engineer camp-shedding or other suitable works for the protection of the towpath bank of the river immediately under the span of Work No. 3 at ground level on the eastern side of the river and for a distance along the said bank of ten feet above and ten feet below the said span together with hand-railing thereto and shall for ever thereafter at the like expense and to the like satisfaction maintain the said protective works and hand-railing :
- (12) If any difference arise between the Commissioners and the conservators as to any matter or thing affecting the plans or the mode of constructing the works by this Act authorised such difference shall be referred to an arbitrator to be appointed on the application of either party by the Board of Trade and any

arbitration hereunder shall except as to the appoint- A.D. 1915.
ment of an arbitrator be subject to the provisions of
the Arbitration Act 1889.

18.—(1) The Commissioners shall not alter divert raise sink For protec-
or otherwise interfere with any telegraphic line (as defined by tion of
the Telegraph Act 1878) belonging to or used by the Postmaster- Postmaster-
General except under and subject to the provisions of the General.
Telegraph Act 1878.

(2) The Commissioners shall when carrying out the works authorised by this Act provide such reasonable accommodation as shall be sufficient for a four-inch earthenware duct containing telegraphic lines of the Postmaster-General. The accommodation shall be provided in the footway of the bridges and approaches and the embankment and public carriage road authorised by this Act and in accordance with plans sections and particulars to be previously submitted to and reasonably approved by the Postmaster-General. Provided that if within one month of the receipt of the said plans sections and particulars the Postmaster-General shall not have intimated to the Commissioners his disapproval thereof or made any requirement with respect thereto he shall be deemed to have approved the same.

19. For the protection of the Berkshire County Council (in this section referred to as “the county council”) the following provisions shall unless otherwise agreed in writing between the county council and the Commissioners have effect (that is to say) :— For protec-
tion of Berks
County
Council.

- (1) Notwithstanding anything contained in the section of this Act of which the marginal note is “For protection of Conservators of River Thames” the Work No. 1 by this Act authorised shall not except with the consent in writing of the county council be executed or maintained otherwise than in accordance with the plans elevations and sections thereof referred to in subsection (2) of the said section. Provided that if the said conservators and the Commissioners shall agree in writing that the said work shall be executed or maintained otherwise than in accordance with the said plans elevations and sections the consent of the county council to the execution or maintenance of the said work in the manner so agreed shall not be unreasonably withheld :

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(2) If any question shall arise between the county council on the one hand and the said conservators and the Commissioners or either of them on the other hand as to whether the consent of the county council under this section is unreasonably withheld with respect to the construction or maintenance of the said work as aforesaid such question shall be determined by an arbitrator to be agreed upon by the parties in difference or failing such agreement to be appointed on the application of either party by the Board of Trade.

Temporary
stoppage of
streets.

20.—(1) The Commissioners during the execution and for the purposes of any works authorised by this Act may break up and also temporarily stop up divert and interfere with any street and may for any reasonable time prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same.

(2) The Commissioners shall provide reasonable access for foot passengers bonâ fide going to or returning from any such house.

Works to
form part of
undertaking
of Commis-
sioners.

21. The works authorised by this Act shall for all purposes (including the levying and recovery of tolls dues and charges) form part of the undertaking of the Commissioners authorised by the Act of 1837 and subject to the provisions of this Act the Commissioners shall have and may exercise and enjoy in over upon and in relation to such works the same rights powers and privileges as they have in relation to their existing bridge and works and subject to the provisions of this Act the powers and provisions of the Act of 1837 shall extend and apply to the works authorised by this Act.

Power to
borrow.

22. For the purposes of this Act and for the general purposes of their undertaking the Commissioners may borrow at interest moneys not exceeding in the aggregate twelve thousand pounds and for the purpose of securing the repayment of any moneys so borrowed the Commissioners may mortgage all or any of their tolls dues duties charges revenues and property.

As to bor-
rowing
powers.

23. Notwithstanding anything in this Act the Commissioners shall not under the powers of this Act (except for the purpose of paying the costs charges and expenses of and incidental to

the preparing for obtaining and passing of this Act) raise or borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained. A.D. 1915.

24. All mortgages granted by the Commissioners under the powers of this Act shall be by deed in which the consideration for the same shall be duly specified and set forth and made by not less than three of the Commissioners in the words or to the effect of the form of mortgage contained in section 74 (Commissioners empowered to borrow money on credit of tolls) of the Act of 1837 or with such variation therein as the circumstances may render necessary. Form of mortgage.

25.—(1) The Commissioners shall have power—

(a) To borrow for the purpose of paying off any moneys previously borrowed under this Act which are intended to be forthwith repaid; or

(b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Commissioners in repaying moneys previously borrowed under this Act and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Commissioners shall not have power to borrow for the purpose of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Commissioners shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) out of moneys derived from the sale of land; or

(c) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Power to re-borrow.

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(5) Section 75 (In case mortgages paid off power to raise the amount again) of the Act of 1837 is hereby repealed.

Commis-
sioners not
to regard
trusts.

26. The Commissioners shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person or persons in whose name any loan or security for loan may stand in the register of mortgages of the Commissioners shall from time to time be a sufficient discharge to the Commissioners in respect thereof notwithstanding any trust to which such loan or security may be subject and whether or not the Commissioners have had express implied or constructive notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register of mortgages.

Lenders not
bound to
inquire.

27. Lenders of money under this Act to the Commissioners shall not be bound to inquire as to the observance by the Commissioners of any of the provisions of this Act or the Act of 1837 or to see to the application or be answerable for any loss misapplication or non-application of the money lent or any part thereof.

Money may
be borrowed
on cash
account.

28. The Commissioners may from time to time for temporary purposes accept and take from any bank or banking company credit on a cash account to be opened and kept with such bank or banking company in the name of the Commissioners and they may from time to time secure the money to be advanced on such cash account with interest for the same upon any of their property revenues tolls duties dues or charges Provided that the whole sum due and owing by the Commissioners on such cash account shall not at any time exceed the sum of five hundred pounds.

Application
of capital
money.

29. All moneys borrowed by the Commissioners or received as proceeds of sales of lands or being otherwise in the nature of capital shall be applied to the purposes of the Act of 1837 or of this Act to which capital is properly applicable but not otherwise and the Commissioners may also apply any moneys accumulated in their hands to those purposes.

Application
of revenue.

30.—(1) All moneys received or which may be received by the Commissioners as revenue under the authority of the

Act of 1837 and of this Act shall be applied by them to the A.D. 1915.
purposes following:—

First In payment of all costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto so far as the same shall not be paid out of borrowed moneys or moneys accumulated in the hands of the Commissioners:

Secondly In payment of the working and establishment expenses and the cost of the maintenance renewal reconstruction and repair of the works authorised by this Act:

Thirdly In payment of interest from time to time accruing due on any moneys borrowed by the Commissioners:

Fourthly In establishing and keeping up a reserve fund (if the Commissioners think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities in the name of the Commissioners and accumulating the same at compound interest until the fund so formed amounts to the sum of five thousand pounds which fund shall be applicable to answer any deficiency at any time happening in the income of the Commissioners or to meet any extraordinary claim or demand at any time arising against the Commissioners or for payment of the cost of renewing improving extending or rebuilding any works and so that if that fund be at any time reduced it may thereafter be again restored to the said sum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the sum of five thousand pounds:

Fifthly In repaying to such extent in any year as may be determined by the Commissioners capital moneys borrowed by the Commissioners:

Sixthly In defraying all the costs charges and expenses which the Commissioners may incur in the execution of the purposes of the Act of 1837 and this Act and in making completing doing and maintaining all such works matters and things as they may be authorised to make

A.D. 1915.

complete do and maintain so far as the same shall not be payable and paid out of capital:

(2) Section 76 (Application of the tolls &c.) of the Act of 1837 is hereby repealed.

Amendment
of Act of
1837.

31. Notwithstanding anything contained in section 8 (Meetings of Commissioners) of the Act of 1837—

(1) All acts of the Commissioners shall be valid if made or done at some meeting held by virtue of the Act of 1837 at which not less than three Commissioners shall be present and of which not less than three clear days' notice in writing shall have been sent to all the Commissioners at their usual places of abode by prepaid letter post. Provided that if at any meeting less than three Commissioners are present the Commissioner or Commissioners present may adjourn the meeting to such date as he or they may think convenient:

(2) A special meeting may be required by not less than three Commissioners and the notice of such meeting shall be given by the clerk to the Commissioners in the same manner as notice of a meeting under subsection (1) of this section may be given.

Power to
county
authorities to
contribute.

32.—(1) The Berkshire County Council and the Oxfordshire County Council (in this section referred to as "the contributing authority or authorities") or either of them may contribute and pay to the Commissioners any sum which they may think fit towards the cost of the construction by the Commissioners of the works by this Act authorised and the contributing authority or authorities may take and hold mortgages of the Commissioners.

(2) The said county councils may respectively borrow the sums to be contributed by them subject to and in accordance with the provisions of the Local Government Act 1888 as if those contributions were purposes of that Act.

(3) All interest received by the said county councils respectively shall be carried to the credit of the county fund.

(4) The contributing authorities may respectively enter into agreements with the Commissioners with respect to the matters aforesaid.

(5) All moneys received by either of the contributing authorities in payment of any principal moneys advanced by them shall be applied by them in the repayment of moneys borrowed for the purposes of this section so long as any part of such moneys shall be outstanding and in repayment of any other loans of such contributing authority and such moneys shall not be applied to the payment of instalments or to the payment into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board. A.D. 1915.

(6) The clerk to the contributing authority shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in respect of any money raised under this section and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk to the contributing authority shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(7) If it appears to the Local Government Board by that return or otherwise that the contributing authority have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to

A.D. 1915. set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this section or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Power to
transfer
bridge by
agreement to
Oxford and
Berks
County
Councils.

33.—(1) The Commissioners may by agreement transfer to the county councils of the counties of Oxford and Berks upon and subject to such terms and conditions as may be agreed between the Commissioners on the one hand and the said county councils on the other hand the works authorised by the Act of 1837 and this Act and all funds property debts and liabilities of the Commissioners as existing at the date of transfer and the said county councils may take a transfer thereof.

(2) From and after any such transfer as aforesaid the said works shall be vested in the said county councils as a joint county bridge in such shares and proportions as shall have been agreed upon and the said debts and liabilities shall attach to the said county councils and the Commissioners shall be dissolved and shall be relieved from such debts and liabilities and all obligations and liabilities of the Commissioners (other than the debts and liabilities transferred as aforesaid) under the Act of 1837 and this Act or either of them shall cease and determine and the Act of 1837 and the provisions of this Act other than this section shall be by virtue of this Act repealed except the provisions thereof relating to the taking of the tolls hereinafter referred to which provisions shall remain unrepealed until the expiration of the period during which the said county councils may under the powers hereinafter contained take such tolls.

(3) The said county councils may during the period of fifteen years from the date of any such transfer as aforesaid demand and take the tolls dues duties and charges which may be demanded and taken by the Commissioners under the provisions of the Act of 1837 and this Act and on the expiration of that period all right of the said county councils to demand and take

A.D. 1915.

(4) The said county councils shall apply all funds of the Commissioners transferred to them as aforesaid and the proceeds of sale of all property of the Commissioners (other than the said works) so transferred to them in or towards the discharge of any debts and liabilities of the Commissioners which may attach to the said county councils under the provisions of this section and so far as such funds and the proceeds of sale of such property shall not be required for the discharge of such debts and liabilities the same shall be carried to the respective county funds of the said county councils in such proportions as may be agreed between them.

(5) For the purpose of discharging any debts or liabilities of the Commissioners which may be transferred to the said county councils as aforesaid and which shall not be discharged out of the funds and proceeds of sale referred to in subsection (4) of this section the said county councils may with the consent of the Local Government Board borrow such sums of money as may be necessary in accordance with the provisions of section 69 of the Local Government Act 1888 as if the said purpose were a purpose referred to in that section.

34. All costs charges and expenses preliminary to and of Costs of Act. and incident to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Commissioners.

A.D. 1915.

The SCHEDULE referred to in the foregoing Act.

LIST OF PROPERTIES OF WHICH PART ONLY MAY BE TAKEN.

Parish.	Number on deposited Plans.
Streatley - - - - -	2A
Goring - - - - -	2A 3 5 6 8 10 11 13 15 16 17

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